

2:00 PM

LINE: 8

25-CIV-09212

BANDEL CARANO VS. FMA BUILDERS

BANDEL L. CARANO
FMA BUILDERS

WILLIAM R GARRETT
DAVID DAVIDSON

DEFENDANT/CROSS COMPLAINANT FMA BUILDERS' MOTION TO DEEM CASE COMPLEX AND STAY ALL DISCOVERY PENDING ENTRY OF CASE MANAGEMENT ORDER PURSUANT TO CALIFORNIA RULES OF COURT, RULE 3.400(a)-(c); THE STANDARDS OF JUDICIAL ADMINISTRATION 3.10; CALIFORNIA CODE OF CIVIL PROCEDURE 187, 128 AND 2017.020 and SMC Local Rule 3.300

TENTATIVE RULING:

For the reasons stated below, the motion is **GRANTED IN PART** and **DENIED IN PART**. The request to deem the case complex is **MOOT** because the action has already been deemed complex and assigned to this department pursuant to San Mateo County Local Rule 3.300. The Court has issued Case Management Order No. 1 and will not enter a competing case management order proposed by either side.

The request for a temporary stay of discovery is **GRANTED**. All discovery that has been propounded to date is stayed, and the time to respond to that discovery is tolled, pending appointment of the special master and completion of a meet and confer process before the special master regarding how discovery should proceed under Case Management Order No. 1. No additional party discovery shall be propounded during the stay absent agreement of the parties or further court order.

The request to appoint Robert A. Bellagamba as special master is **GRANTED IN PRINCIPLE**, subject to submission of a proposed order defining the scope of reference, compensation, interim allocation of fees, reporting procedure, objection procedure, and any separate mediation role. After the special master is appointed, the parties shall promptly meet and confer with the special master regarding discovery procedures, including the sequencing of written discovery, document production, inspections, depositions, expert discovery, discovery involving newly added parties, and any discovery issues not specifically addressed by Case Management Order No. 1. Any supplemental procedures must be consistent with Case Management Order No. 1 unless otherwise ordered by the Court.

If the parties agree on supplemental discovery procedures, they shall submit a stipulated supplemental case management order or discovery protocol. If they cannot agree, the special master may make recommendations to the Court consistent with the order of reference and Case Management Order No. 1.

The Court does not decide at this time whether mediation fees, mediator fees, or special-master fees may be recovered by any party as costs, attorney fees, or otherwise after judgment or other disposition. That issue is premature and is preserved for any later properly noticed cost or fee proceeding. Any interim allocation or payment of such fees is without prejudice to any party's right to seek recovery, or to oppose recovery, after judgment or other disposition.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Defendant FMA Builders shall prepare a written order consistent with this ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide notice of the ruling to all appearing parties as required by law. The Court further directs the parties' attention to revised Local Rule 3.403(b)(iv) (eff. Jan. 1, 2024) regarding the form of proposed orders.

2:00 PM

LINE: 9

25-CLJ-07809

U.S. BANK NATIONAL ASSOCIATION VS. JENNIFER N FLORES

U.S. BANK NATIONAL ASSOCIATION
JENNIFER N FLORES

DOUGLAS S WALLACE
SACHA B MANIAR

DEFENDANT JENNIFER FLORES' MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

TENTATIVE RULING:

For the reasons stated below, the Motion to Set Aside Default and Default Judgment brought by Defendant Jennifer N. Flores is **GRANTED**. Plaintiff's Request for Judicial Notice in Opposition is **GRANTED**.

The Court notes that Defendant has not provided the address for the hearing. Department 2 is located at the Northern Branch, Courtroom K, 1050 Mission Road, South San Francisco, California 94080. (See Cal. Rules of Court, rule 3.1110(b)(1) [the first page of each paper must specify the date, time, and location, if ascertainable, of any scheduled hearing].)

BACKGROUND

According to the Complaint, the parties entered into a credit card agreement on or about April 23, 2019. (Complaint, p. 3, box BC-1 & Exh. A.) Plaintiff seeks \$5,482.45 in damages, plus court costs. (Id., p. 3, boxes BC-4–BC-6 & Exh. B.) Plaintiff alleges that Defendant breached the agreement on or about May 30, 2025, by failing to make payments due under the agreement.

Plaintiff requested default, and the clerk entered Defendant's default on December 17, 2025, with a memorandum of costs in the amount of \$297.61. The Court refers to this entry of default as the "Default." Plaintiff then requested default judgment in the total amount of \$5,780.06, which the Court signed and entered on February 10, 2026. The Court refers to this judgment as the "Default Judgment."

Through the present Motion, Defendant asks the Court to set aside the Default and Default Judgment so the case may be decided on its merits.

Defendant asserts that judgment was entered against her through mistake, excusable neglect, inadvertence, and surprise. She further asserts that she acted diligently in seeking assistance and bringing the Motion after learning of the judgment. She attaches a proposed Answer. (Flores Decl., ¶ 16 & Exh. B.) Defendant also notes that the only prejudice asserted by Plaintiff is limited to the ordinary burdens of litigation.

Plaintiff submits only the Proof of Service of Summons filed in this action on October 27, 2025. (Plaintiff's Request for Judicial Notice, ¶ 1 & Exh. A.) Defendant does not deny that she was served. (See Flores Decl., ¶ 3.)